

District: Sylhet

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present

Mr. Justice Sardar Md. Rashed Jahangir

Civil Revision No. 4917 of 2011

With

Civil Revision No. 32 of 2012

In the matter of :

Abdul Bari being dead his heirs and others
... Petitioners (in both the Civil Revisions)

-Versus-

The Government of Bangladesh and others
...Opposite parties

Mr. Surajit Bhattachargee, Advocate with
Ms.Farhana Siraj Ronie, and

Mr. Monishankar Sarkar, Advocates

...For the petitioners (in both the Civil Revisions)

Mr. Jahangir Ahmed Khan, D.A.G with

Mr. Md. Habibur Rahman Sarkar, A.A.G.

...For the opposite party Nos. 1-6
(in Civil Revision No. 4917 of 2011)

...For the opposite party Nos. 5-10 (in Civil
Revision No. 32 of 2012)

Mr. Sk. Sharifuddin, Advocate

...For the opposite party Nos. 1-4 (in
Civil Revision No. 32 of 2012)

...For the opposite party Nos. 7-10 (in
Civil Revision No. 4917 of 2011)

Heard on: 06.01.2025,

12.01.2025 and 14.01.2025

Judgment on: 27.01.2025

Both the civil revisional applications are directed against the judgment and decree dated 29.09.2011 (through separate judgments) passed by the Additional District Judge, Third Court, Sylhet in Title Appeal No. 103 of 2003 heard analogously with Cross Appeal No. 08 of 2003 dismissing the Title Appeal No. 103 of 2003 and allowing Cross Appeal No. 08 of 2003, affirming those of dated 04.06.2003 passed by the Assistant Judge, Fenchugonj, Sylhet in Title Suit No. 4 of 2002 by separate judgments and decree.

The present petitioners being plaintiffs filed Title Suit No. 04 of 2002 before the Assistant Judge, Fenchugonj, Sylhet impleading the present opposite parties as defendants for declaration of title in respect of the property appertaining to the 'Second Schedule' under the 'First Schedule' to the plaint and for further declaration that the notice vide Memo No. S.A/432/6(1) dated 20.02.2002 issued by the defendant No. 2 in respect of the suit land is illegal, collusive and not binding upon the plaintiffs and for further declaration that the ex-parte judgment and decree passed in Title Suit No. 06 of 1993 so far it relates to the suit

property is illegal, null, void, collusive, in-operative and not binding upon the plaintiffs.

The case of the plaintiffs' in brief are that the 'Schedule- 2' property under the 'Schedule-1' to the plaint along with other properties was belong to Tajammul Ali, Tafazzul Ali, Praholad Chandra Roy and Shashi Mohon Das. Tajammul Ali and Tafazzul Ali sold out their shares to Mofazzil Ali, predecessor of the plaintiffs through registered deed No. 3428 dated 12.10.1954 and deed No. 429 dated 25.12.1956. Praholad Chandra Roy and Shashi Mohan Roy also sold out their property vide deed No. 2659 dated 11.07.1955 and 2558 dated 01.07.1953 to Hurunnessa, predecessor of the plaintiffs. Mofazzil Ali and Hurunnessa, both husband and wife in the way as aforementioned acquired right, title and exclusive possession over the aforesaid property. The 'Second Scheduled' land is length wise east-west downwards to the East having slop. The land of said Second Schedule was 'সাইল' and 'হালিচারা', through which the rain water is drained. The predecessor of the plaintiffs developed the land by filling earth arranging the rain water to be drained to the downwards. The property was under the exclusive enjoyment of the predecessors of

the petitioners. One Jamil Ahmed and others filed an application before the defendant No. 2 and upon receiving the said application, the defendant No. 4 issued a notice on 02.04.2000 upon the plaintiffs and others. Upon receipt of the said notice, the plaintiffs came to know that the suit land has been wrongly recorded in the khash khatian No. 1 of the Government as gopath and canal. It is specific case of the plaintiffs that although the property has been recorded wrongly as the gopath and canal in the khatian and map, but the same is never used by the general public. Taking the advantage of wrong recording, Jamil Ahmed and others filed the aforesaid application, through which the plaintiffs were asked to vacate the land. The further case of the plaintiffs are that due to the wrong recording, the defendant Nos. 7-10 filed Title Suit No. 06 of 1993 claiming easement right and thereby obtained a collusive ex-parte decree in favour of them. The actual nature of the suit land is canal and is for the use of plaintiffs' family. Having been recorded wrongly the property in question in the name of Government under khash khatian No. 1 creates cloud upon the title of the plaintiffs and as such, they were constrained to file the suit sought for the aforesaid reliefs.

The defendant No. 2 contested the suit by filing written statement denying all the material averments of the plaint. The specific case of defendant No. 2 is that the 'Second Scheduled' land is not part and parcel of the 'First Scheduled' land and the Tajammul Ali and others, the vendors of the predecessors of plaintiffs were not the owner of aforesaid property and they never transferred the Second Scheduled land to the predecessors of plaintiffs, the suit land was used as gopath for long time and has been rightly recorded in the name of the Government under khash khatian No. 1 within the knowledge of plaintiffs and others. The plaintiffs have no right and title over the suit land and as such, the eviction notice was issued upon the plaintiffs for vacating the possession of the land-in-question.

Defendant Nos. 7-10 contested the suit by filing a separate written statement denying all the material averments of the plaint. The specific case of these defendants are that the suit land along with others were originally belonged to Ramu Das under Taluk No. 46831/113 and while the said property was under the onwnership of Ramu Das, he constructed a pathway of cattle and local inhabitants for general use, subsequently, the road has been

converted as a canal due to the drainage of rain water. And during the settlement operation, the concerned staff recorded the suit land as gopath under the khash khatian No. 1 of the Government. Having knowledge regarding the aforesaid recording plaintiffs did not raise any objection at the time of settlement. The plaintiffs have no cause of action. Subsequently, the predecessor of the defendant Nos. 7-10 purchased some property adjacent to the 'Second Scheduled' land and started residing therein by erecting homestead. The 'Second Scheduled' land are being used as their pathway as well as gopath. The plaintiff No. 1 and his son on 01.07.1993 created obstacle into the aforesaid pathway of the defendants. So the defendants were constrained to file Title Suit No. 06 of 1993, sought for declaration of their easement right over the 'Second Scheduled' land together with permanent injunction and the suit was duly decreed in favour of defendant Nos. 7-10. The plaintiffs have no right and title over the suit land and thus, the suit is liable to be dismissed.

Upon hearing the contending parties, learned Assistant Judge, Fenchuganj, Sylhet framed as well as 6(six) issues out of which, the Issue Nos. (II) and (III) were as to whether the suit is

bad for defect of party or barred by law of limitation? have been decided in favour of the plaintiffs and so far, the Issue No. 4 is concerned as to whether the plaintiffs have any right, title and interest over the 'Second Scheduled' land and whether the notice dated 20.02.2002 issued by defendant No. 2 is illegal?, have been decided against the plaintiffs, holding that the plaintiffs failed to prove their right and title over the Second Scheduled property and the property in question has been rightly recorded in the khash khatian No. 1 under the Government and as such, the notice was served justly and legally. So far the Issue No.(V) is concerned, the learned Assistant Judge found that the summons of Title Suit No. 06 of 1993 was not properly served upon the present plaintiffs (defendants of that suit). It was also found that the notice was shown to be served fraudulently and on the said findings learned Assistant Judge set aside the ex-parte judgment and decree of Title Suit No. 06 of 1993.

Having been aggrieved by the aforesaid judgment and decree the plaintiffs filed Title Appeal No. 103 of 2003 before the District Judge, Sylhet and the defendant Nos. 7-10 filed Cross Appeal No. 8 of 2003; both the appeals on transfer were heard by

the Additional District Judge, Third Court, Sylhet and by his judgment and decree dated 29.09.2011 dismissed the Title Appeal No. 103 of 2003 and sending back the Title Suit No. 06 of 1993 for hearing afresh upon allowing the Cross Appeal No. 8 of 2003.

Being aggrieved by and dissatisfied with the aforesaid judgments and decree of the appellate Court below, the plaintiffs preferred both the revisional applications and obtained the Rules.

Mr. Surojit Bhattacharjee, learned Advocate for the petitioners submits that both the Courts below failed to consider that the recording of suit property in the khash khatian No. 1 of the Government having no foundation and having failed to consider the basic title documents of plaintiffs which have been exhibited as 'Exhibit-3 series'. He next submits that the recording in the khatian itself does not confer any title upon the defendant. In support of the submission, he cited the judgment of Guru Charan Mondal and others Vs. Sree Bhaba Sindhu Sarkar and others, reported in 13MLR(AD) 6.

He next submits that the plaintiffs of Title Suit No. 06 of 1993 had also filed Title Suit No. 27 of 2008 regarding the self-

same property and the said suit was dismissed for default and they did not take any step to restore the suit in its original file and number. He continues to submit that the plaintiffs of Title suit No. 06 of 1993 practicing fraud upon the Court as well as the defendants obtained an ex-parte decree showing that the summons of the said suit was served upon the defendants (upon the present plaintiffs) and as such, the trial Court justly and legally set aside the aforesaid ex-parte decree. He lastly submits that they have right, title and possession over the suit property and thus, both the Courts below committed error of law without considering the title of the plaintiffs, dismissing the suit as well as the appeal.

On the other hand, Mr. Jahangir Ahmed Khan, learned Deputy Attorney General submits that both the Courts below concurrently found that the plaintiffs have no right, title and possession over the suit land and the 'Second Scheduled' property has been rightly recorded as gopath and canal in the khash khatian No. 1 of Government and as such, the notice dated 20.02.2002 has been issued justly and legally under the signature of defendant No. 2.

Mr. Sk. Sharifuddin, learned Advocate appearing for the opposite party Nos. 7-10 submits that the property in question under 'Second Scheduled' to the plaint is being used as public pathway and gopath and through which the rain water also be drained and due to the usage, the property has been recorded duly in the khash khatian No. 1. The plaintiffs have no right, title and possession over the suit property. He next submits that both the Courts below concurrently found that plaintiffs failed to prove their title and possession over the suit land.

Heard learned Advocates of all the parties, perused the revisional applications together with the annexures; having gone through the synopsis of facts, submissions filed on behalf of the petitioners and the lower Courts' record.

It appears that the plaintiffs filed the present suit for declaration of title into the 'Second Scheduled' land under the 'First Schedule' to the plaint and in addition they sought for a declaration that the notice vide Memo No. S.A/432/6(1) dated 20.02.2002 issued by the defendant No. 2 in respect of the suit land is illegal, collusive, ineffective, not binding upon the

plaintiffs and for a further declaration that the ex-parte judgment and decree dated 03.11.1993 passed in Title Suit No. 06 of 1993 is illegal, conclusive, fraudulent and not binding upon the plaintiffs.

Learned Assistant Judge upon hearing the parties framed as well as 6(six) Issues, out of which Issue No. (IV) was, whether the plaintiffs have any right, title and interest over 'the Second Scheduled' land and whether the notice dated 20.02.2002 issued under the signature of defendant No. 2 upon the plaintiffs is illegal or not?

Learned Judge of the trial Court categorically found that the property specified under Schedule No. 1 to the plaint measuring in-total an area of 1.64 acres and the plaintiffs demanded their title over the entire property of Schedule No. 1 and in support of their title, plaintiffs exhibited several deeds as 'Exhibit-3 series' claiming those as basic documents of their title. Upon assessing the aforesaid 'Exhibits' trial Court held that according to the plaintiffs claim, their predecessors have purchased in total 1.17 acres of land through the aforesaid sale deeds and having title only over 1.17 acres of land, the plaintiffs claimed their title in the

present suit regarding 1.64 acres of land but having been failed to establish their title over 0.47 acres of land out of the First Schedule and the 'Second Scheduled' land is the part and parcel of the aforesaid First Scheduled land, consisting about 0.9 decimals of land and as such, it was categorically found by the trial Court that the plaintiffs could not prove their right, title over the Second Scheduled land.

It was found by the trial Court that since no private person has any claim over the Second Scheduled land and the plaintiffs having no right, title therein, thus, inference can be drawn that it has been rightly recorded in the khash khatian No. 1.

From the evidence on record, it appears that there is a public pathway as well as gopath in the Second Scheduled land and as such, it appears to this Court that the property has been recorded justly and legally in the khash khatian No. 1 as well as in the published map. The appellate Court below in its judgment and decree categorically found that the suit land is a canal originated from the Government Road, which seems to be since the time of ex-landlord.

I have examined the cited judgment reported in the 13 MLR, this Court is in agreement with learned Advocate for the petitioners that record of right does not create any title in favour of anyone, but it bears a rebuttable presumption value and since the plaintiffs failed to rebut the presumption, the said judgment and decree is of no assistance to improve the plaintiffs' case.

In the premise above, so far the first 2(two) declarations are concerned, i.e. declaration of plaintiffs' title as well as declaration against the issued notice of defendant No. 2, this Court finds no cogent reason to interfere into the concurrent findings of fact to the effect that the plaintiffs have no right, title over the Second Scheduled land and the defendant No. 2 has rightly issued the notice vide memo dated 20.02.2002.

So far the question of the ex-parte decree is concerned, the plaintiffs of that suit (defendant Nos. 7-10 of the present suit) have not filed any revision challenging the judgment and decree of the appellate Court and the trial Court in its judgment categorically found that the notice of the said suit has been shown to be served upon the defendants fraudulently in obtaining the ex-parte decree

and on the said finding learned Judge of the trial Court set aside the ex-parte judgment and decree passed in Title Suit No. 06 of 1993. The appellate Court below in its judgment sent back the Title Suit No. 06 of 1993 on remand for hearing afresh. I find no reason to interfere with the aforesaid finding as well as conclusion.

In the result, the Rules are discharged without any order as to cost.

Send down the lower Courts' record.

Communicate the judgment and order at once.